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JUDGMENT SHEET
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.39994 of 2025

Bilal Hussain
Versus
Home Secretary, Govt. of Punjab, Lahore & others

J U D G M E N T

Date of hearing: 19.01.2026.
Petitioner by: Mr. Nadeem Shibli, Advocate.
Respondents by: Malik Umar Tahir, Assistant Advocate General along with Rashid Minhas, D.S. (Legal-II), Zubair Gillani, Assistant Commissioner, Chak Jhumra, Faisalabad, Mohsin Amin, S.O. Internal Security-III, Home Department and Muhammad Afzal, Inspector / S.H.O.

MUHAMMAD SAJID MEHMOOD SETHI, J.:- Through the present constitutional petition, the petitioner, Bilal Hussain, has assailed the orders dated 25.06.2025 and 28.06.2025, passed by respondents No.2 and 8, respectively, whereby, pursuant to the directions issued by this Court vide orders dated 23.06.2025 and 27.06.2025, passed in earlier rounds of litigation, the petitioner's representation seeking security arrangements for holding *Majlis-e-Aza* and *Jaloos* scheduled on 4th *Moharram-ul-Harram*, 2025, was declined and the appeal preferred against such refusal was dismissed.

2. The central controversy in the present petition revolves around the alleged discriminatory and arbitrary refusal by the district administration and the respondent No.8 / Grievance Redressal Commissioner (Home Department) to provide police security to the petitioner's *Majlis-e-Aza* and *Jaloos*, notwithstanding the fact that similar programs organized by similarly placed other individuals were allegedly conducted during the years 2020 to 2025 with official permission and requisite security arrangements.

3. Learned counsel for the petitioner contends that respondent No.2/Deputy Commissioner, Faisalabad failed to meaningfully comply

with and implement the earlier directions issued by this Court. He submits that the impugned order dated 25.06.2025 was earlier assailed through a writ petition, wherein this Court, vide order dated 27.06.2025, directed the respondent No.8 / Grievance Redressal Commissioner to hear the petitioner on the issue of provision of security and to resolve the matter within a stipulated time. He argues that during the said hearing, upon examining the record, the respondent No.8 acknowledged that the petitioner's Majlis was being conducted in parity with five other similarly placed programs and observed that there was no impediment in providing security. He further contends that despite such acknowledgment and despite clear directions of this Court, the respondent No.8 passed the impugned order dated 28.06.2025 on stereotyped reasoning, primarily relying upon past FIRs while completely disregarding acquittal orders and the police record. He submits that this selective and arbitrary treatment, in the face of admitted parity, amounts to a violation of Articles 4, 20 and 25 of the Constitution of the Islamic Republic of Pakistan, 1973.

4. Conversely, learned Law Officer supports the impugned orders by asserting that the petitioner's case is not at par with other persons who were granted permission to hold *Majalis* or processions. It is maintained that, according to police reports, the petitioner's program is neither traditional nor licensed and lacks prior approval from the competent authority. It is further contended that four FIRs were registered against the petitioner for holding unauthorized programs during the years 2020 to 2023, that there exist serious apprehensions of sectarian tension and breach of peace, and that the District Intelligence Committee unanimously rejected the petitioner's request. Learned Law Officer further submits that the programs of Syed Husnain Akhtar and Syed Tabarak Hussain enjoy traditional recognition, distinguishing their cases from that of the petitioner.

5. I have heard the learned counsel for the parties and have perused the record with their able assistance.

6. Record reveals that the petitioner has repeatedly approached this Court in earlier rounds of litigation, wherein directions were

consistently issued to the district administration to consider his case in accordance with law, keeping in view parity with similarly placed organizers and past record. Despite such directions, the impugned orders were passed either *ex parte* or on stereotyped reasoning, primarily relying upon past FIRs while ignoring acquittal orders, police record, affidavits, and documented evidence of previous permissions and provision of security. In the earlier round of litigation, the stance of the respondents was that the programs of petitioner and others, namely Ghulam Abbas, Syed Husnain Akhtar, Muhammad Javed and Syed Tabarak Hussain, being traditional, were allowed to be held, whereas the petitioner's program, being termed as "innovative" and not traditional, was declined. When called upon to explain the meaning of the term "traditional", learned Law Officer submitted that, in the peculiar facts and circumstances of the case, considering the past practice and the length of time for which such programs had allegedly been held, over twenty (20) years, the same would be treated as traditional. However, he failed to substantiate this assertion through any cogent material or lawful criteria, nor was any evidence produced to show that the above-named persons held any license, approval or formal recognition of conducting so-called traditional programs. In these circumstances, it is *prima facie* evident that the petitioner has been singled out and subjected to gross discrimination. Notwithstanding the above, it is not denied by the respondents that subsequently, all the aforesaid persons were granted permission to hold their respective programs, however, no lawful justification has been offered for denying similar treatment to the petitioner.

7. The respondents have attempted to justify their stance by asserting that the petitioner's program is not "traditional"; however, neither the impugned orders nor the arguments advanced before this Court disclose any statutory provision, policy guideline, or objective criteria defining or regulating the concept of "traditional" *Majalis* or processions. Admittedly, the respondents have failed to explain the meaning, scope, or parameters of "traditional" programs, rendering their reliance on this ground wholly vague, subjective, and legally

unsustainable. Selective denial of security, in the absence of intelligible differentia and without demonstrating lawful distinction from similarly situated persons, offends the guarantees of equality, due process, and freedom to profess and practice religion. Administrative discretion, particularly in matters touching fundamental rights, cannot be exercised arbitrarily, vindictively, or in disregard of binding judicial directions. This Court further finds that persistent non-compliance with earlier orders, coupled with shifting stands taken by the administration, reflects a failure to act in aid of justice and undermines the rule of law.

8. In aid of the above conclusions, it is instructive to notice that the consistent judicial view of the Superior Courts is that the right to hold religious gatherings, processions and *Majalis* is a constitutionally protected facet of Article 20 of the Constitution, read with the concomitant right of peaceful assembly, and that such right, though subject to regulation in the interest of public order, morality and law, cannot be curtailed through total or blanket prohibitions. The jurisprudence emanating from cases dealing with Muharram processions and *Majalis* unequivocally establishes that statutory provisions such as Section 16 of the Punjab Civil Administration Act, 2017 confer regulatory, not prohibitory, powers upon the Deputy Commissioner. The requirement of prior permission, consultation with police authorities, and imposition of reasonable conditions is intended to facilitate the exercise of religious rights in a secure and orderly manner, and not to defeat or frustrate the very essence of those rights. Any interpretation that treats regulation as synonymous with prohibition has repeatedly been disapproved by the Courts.

9. Furthermore, it stands settled that refusal of permission for a religious procession or *Majlis* must be founded on cogent, relevant and legally sustainable reasons, having a rational nexus with the likelihood of breach of peace or disturbance of public order. Mere reliance on executive guidelines lacking statutory force, generalized apprehensions, or police reports devoid of concrete law-and-order concerns does not satisfy the test of lawful exercise of discretion. The authority competent to decide such applications must independently

apply its mind, record reasons, and demonstrate that the restriction imposed is proportionate, necessary and the least intrusive measure available. It has also been consistently held that likelihood of breach of peace, by itself, does not justify outright refusal; rather, it furnishes the jurisdiction to impose regulatory conditions such as route, timing, security arrangements and other safeguards to avert any untoward incident. Equally significant is the principle that total denial of permission, particularly where past practice shows that similar religious activities were carried out peacefully and without incident, amounts to an arbitrary and unreasonable encroachment upon fundamental rights. The law does not envisage permanent or absolute bans on religious observances, whether in the form of processions or indoor *Majalis*, unless compelling circumstances grounded in law are clearly established. An order that ignores prior peaceful conduct, willingness of the organizers to abide by lawful conditions, and absence of *mala fides* or ulterior motives, cannot withstand constitutional scrutiny. In this settled legal backdrop, any impugned decision that effectively converts regulatory power into a tool of prohibition, without lawful authority or adequate reasoning, is liable to be declared without lawful authority and of no legal effect. Reliance is placed upon *Muhammad Hussain Bhatti v. District Magistrate, Gujrat* (1985 P Cr. L J 301), *Shamim Haider and 6 others v. Additional Chief Secretary (Home), Government of Punjab and 5 others* (PLD 2022 Lahore 676) and *Manzoor Hussain v. Government of Punjab through Chief Secretary, Punjab Lahore and others* (2023 YLR 64).

10. For the foregoing reasons, this constitutional petition is **allowed**. The impugned orders dated 25.06.2025 and 28.06.2025 are hereby set aside. The Deputy Commissioner, Faisalabad, and the City Police Officer, Faisalabad, are directed to provide requisite and adequate police security to the petitioner's *Majlis-e-Aza* and *Jaloos* scheduled on 4th *Moharram-ul-Harram*, in line with the arrangements previously granted from 2020 to 2025 to the similarly placed other persons, discussed supra, strictly in accordance with law and applicable SOPs.

The respondents shall ensure that no discriminatory or coercive action is taken against the petitioner.

(Muhammad Sajid Mehmood Sethi)
Judge

APPROVED FOR REPORTING

Judge

A.H.S.